

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-01

20230930-DK-BUTTERFLY-1, INC. v. BAL CONTAINER LINE CO., LIMITED

**COMPLAINANT 20230930-DK-BUTTERFLY-1, INC.'S
SECOND MOTION TO COMPEL DISCOVERY
FROM RESPONDENT BAL CONTAINER LINE CO., LIMITED**

TABLE OF CONTENTS

I.	BACKGROUND.....	4
II.	LEGAL STANDARD	5
III.	ARGUMENT	7
IV.	CONCLUSION	9

TABLE OF AUTHORITIES

Cases

<i>Champion Foodservice, LLC v. Vista Food Exchange, Inc.</i> , No. 1:13-cv-1195, 2016 U.S. Dist. LEXIS 1129820, 2016 WL 4468000 (N.D. Ohio Aug. 23, 2016)	6
<i>City of Chicago v. DoorDash, Inc.</i> , No. 1:21-CV-05162, 2024 WL 4119165 (N.D. Ill. Sept. 9, 2024).....	7
<i>Dyson, Inc. v. Sharkninja Operating LLC</i> , No. 1:14-CV-0779, 2016 WL 1613489 (N.D. Ill. Apr. 22, 2016).....	9
<i>Garcia Ramirez v. U.S. Immigration & Customs Enforcement</i> , 331 F.R.D. 194 (D.D.C. 2019)...	8
<i>In re C. R. Bard, Inc. Pelvic Repair Sys. Prod. Liab. Litig.</i> , No. MDL 2187, 2014 WL 12703776 (S.D.W. Va. June 30, 2014)	8
<i>Johnson v. Kraft Foods N. Am., Inc.</i> , 236 F.R.D. 535 (D. Kan. 2006).....	6
<i>MCS Indus., Inc. v. COSCO Shipping Lines Co., Ltd. & MSC Mediterranean Shipping Co. SA</i> , FMC Dkt. No. 21-05, 2021 WL 5908366 (FMC C.A.L.J. Dec. 8, 2021).....	7
<i>Novelty, Inc. v. Mountain View Mktg., Inc.</i> , 265 F.R.D. 370 (S.D. Ind. 2009).....	6
<i>Thomas v. City of New York</i> , 336 F.R.D. 1 (E.D.N.Y. 2020)	8

Rules

46 C.F.R. § 502.12	6
46 C.F.R. § 502.141(e)(1).....	6
46 C.F.R. § 502.141(e)(2)(i)	6
46 C.F.R. § 502.145(d)(1).....	6
46 C.F.R. § 502.146(a)(1)(i)	6
46 C.F.R. § 502.150.....	3

Pursuant to 46 C.F.R. Section 502.150, Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant” or “BBBY”),¹ by and through its undersigned attorneys, hereby moves to compel Respondent BAL Container Line Co., Limited (“Respondent” or “BAL”) to search for and produce nonprivileged documents and communications in response to BBBY’s First Set of Requests for Production of Documents and Electronically Stored Information (the “BBBY RFPs”) and pursuant to BBBY’s First Set of Interrogatories (the “BBBY Interrogatories” and, together with the BBBY RFPs, the “BBBY Discovery Requests”), including in particular documents and communications from two BAL custodians—Cinda Li and Richard Xu—*that BAL affirmatively listed as possessing relevant information in its verified responses to the BBBY Interrogatories* but from whom BAL unjustifiably is refusing to collect and produce responsive documents and communications. BBBY sets forth below its efforts to confer in good faith to avoid the need for this motion to compel (the “Motion”), its request for relief, and its supporting arguments, and attaches hereto a copy of the BBBY Discovery Requests and the relevant responses from BAL thereto, as required by 46 C.F.R. Section 502.150, as well as the supporting Declaration of J. Zachery Morris (the “Morris Declaration”) and the exhibits attached thereto.

Both prior to and following the Presiding Officer’s July 16, 2025 Order on Complainant’s Motion to Compel (the “MTC Order”) (Dkt. 36), BBBY has sought to work in good faith with BAL, but as the procedural history of this case and this Motion reflect, BAL has repeatedly delayed in fulfilling its discovery obligations and sought unilaterally to impose improper limitations on

¹ Complainant filed a change of name certificate with the New York State Division of Corporations, State Records, and Uniform Commercial Code on September 21, 2023, by and through which Complainant changed its corporate name from Bed Bath & Beyond, Inc. to 20230930-DK-Butterfly-1, Inc.

BBBY's access to relevant, nonprivileged discovery, leading to the impasse necessitating this Motion.

I. BACKGROUND

To date, documentary discovery in this case has been virtually one-sided, as detailed below:

BBBY Document Productions

Production Volume	Date produced	Number of documents	Size of data
BBBY BAL VOL001	7/9/2025	434	2.83 GB
BBBY BAL VOL002	7/10/2025	465	6.58 MB
BBBY BAL VOL003	7/15/2025	2,048	2.55 GB
BBBY BAL VOL004	8/7/2025	517	1.76 GB
TOTAL:		3,464	7.15GB

BAL Document Productions

Production Volume	Date produced	Number of documents	Size of data
BAL001	7/17/2025	1	1.17 MB
BAL002	8/17/2025	654	155 MB
TOTAL:		655	156.17 MB

Following the Presiding Officer's instructions in the MTC Order for BAL to provide BBBY with discovery in response to several requests in the BBBY RFPs² and the BBBY Interrogatories³, BBBY has continued its efforts to work in good faith with BAL to press forward with discovery. In an attempt to streamline the search for and exchange of relevant electronically stored information, BBBY's counsel proposed an "ESI Protocol" similar to those entered in its other pending litigations before the Federal Maritime Commission (the "Commission") on April 17, 2025.⁴ Having received no substantive response from BAL, Complainant's counsel

² Morris Decl. Ex. A.

³ Morris Decl. Ex. B.

⁴ Morris Decl. Ex. C.

recirculated an updated version of the proposed ESI Protocol on August 13, 2025,⁵ following Respondent’s Emergency Unopposed Motion to Extend Deadlines (Dkt. 38).

After a scheduled meet and confer regarding the ESI Protocol was cancelled at BAL’s request, BAL’s counsel ultimately responded with proposed edits to the draft ESI Protocol on August 22, 2025.⁶ The parties exchanged iterative edits and responses to resolve outstanding disagreements until reaching a single remaining impasse⁷: BAL’s refusal to include senior executives Cinda Li and Richard Xu in its list of custodians in the ESI Protocol, despite having affirmatively listed both of them in its Verified Second Amended Responses to Selected Interrogatories⁸ as individuals who were “involved with detention and demurrage” in response to BBY’s Interrogatory No. 7, asking BAL to “[i]dentify each person with decision-making authority concerning . . . detention or demurrage charges”.⁹ When BBY attempted to add Ms. Li and Mr. Xu to the ESI Protocol’s custodian list, consistent with BAL’s responses to the BBY Interrogatories, BAL expressly refused to include them as custodians, inaccurately claiming that their status as senior executives somehow exempted them from documentary discovery.¹⁰

II. LEGAL STANDARD

The Commission’s Rules of Practice and Procedure entitle parties to discovery “regarding any nonprivileged matter that is relevant to any party’s claim or defense—including the existence, description, nature, custody, condition, and location of any documents or other tangible things and

⁵ Morris Decl. Ex. D.

⁶ Morris Decl. Ex. E.

⁷ Morris Decl. Ex. F.

⁸ Morris Decl. Ex. G at 8.

⁹ Morris Decl. Ex. B at 4.

¹⁰ Morris Decl. at ¶ 10.

the identity and location of persons who know of any discoverable matter.”¹¹ The Rules authorize requests to produce documents including data or data compilations “stored in any medium from which information can be obtained either directly or, if necessary, after translation by the responding party into a reasonably usable form.”¹² In responding to interrogatories, the responding party may answer by producing business records but must “specify[]the records that must be reviewed, in sufficient detail to enable the interrogating party to locate and identify them as readily as the responding party could.”¹³

When a party from whom discovery is sought raises undue burden or cost of discovery as an objection, they “must show that the information is not reasonably accessible because of undue burden or cost.”¹⁴ Even when the producing party makes such a showing, “the presiding officer may nonetheless order discovery from such sources if the requesting party shows good cause.”¹⁵

“In proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.”¹⁶ “A litigant cannot limit its discovery so as to ascribe unto itself the role of judge and jury.”¹⁷ “[A] party may not unilaterally withhold information or documents that are responsive to a discovery request” based on that party’s own interpretation of relevance.¹⁸ As the Commission’s Chief Administrative Law Judge has

¹¹ 46 C.F.R. § 502.141(e)(1).

¹² 46 C.F.R. § 502.146(a)(1)(i).

¹³ 46 C.F.R. § 502.145(d)(1).

¹⁴ 46 C.F.R. § 502.141(e)(2)(i).

¹⁵ *Id.*

¹⁶ 46 C.F.R. § 502.12.

¹⁷ *Novelty, Inc. v. Mountain View Mktg., Inc.*, 265 F.R.D. 370, 378 (S.D. Ind. 2009).

¹⁸ *Johnson v. Kraft Foods N. Am., Inc.*, 236 F.R.D. 535, 541 (D. Kan. 2006); *see also* *Champion Foodservice, LLC v. Vista Food Exchange, Inc.*, No. 1:13-cv-1195, 2016 U.S. Dist. LEXIS 1129820, 2016 WL 4468000, at *1 (N.D. Ohio Aug. 23, 2016) (excluding evidence as a sanction against party whose “purported ‘compliance’ [with its discovery

previously explained in granting a motion to compel discovery, a respondent “cannot limit its discovery to what it believes are the core issues in this proceeding nor can it require [the complainant] to produce evidence that claims are valid before producing discovery.”¹⁹

III. ARGUMENT

BAL’s choice to name Ms. Li and Mr. Xu in its verified responses to the BBY Interrogatories as individuals with decision-making authority for detention and demurrage charges identifies them as potential custodians of documents, communications, and information responsive to the BBY RFPs—in particular, Requests for Production Nos. 5, 6, 7, and 8²⁰—and clearly relevant to BBY’s Shipping Act claims in this case, which expressly relate to detention and demurrage charges assessed by BAL. Permitting BAL to refuse even to search for such responsive documents and communications improperly limits BBY’s access to clearly relevant discovery, unduly burdening BBY in its prosecution of this action and, in the process, infringing BBY’s due process rights.

Where, as here, a party has affirmatively offered potential custodians, that offer constitutes an acknowledgement that “they are at least within the universe of people who potentially are likely to have relevant information on the[] issues.”²¹ Accordingly, the burden falls on the party attempting to preclude discovery from its self-identified custodians to demonstrate that producing documents from those custodians would be duplicative, a burden that BAL has not meaningfully attempted to meet and has instead improperly attempted to impose on Complainant.²²

obligations] has been based on its own self-serving definition . . . of what constitutes relevant discovery under the Federal Rules” and “applying its own contrived interpretation of what the discovery rules require”).

¹⁹ *MCS Indus., Inc. v. COSCO Shipping Lines Co., Ltd. & MSC Mediterranean Shipping Co. SA*, FMC Dkt. No. 21-05, 2021 WL 5908366, at *3–4 (FMC C.A.L.J. Dec. 8, 2021) (granting motion to compel).

²⁰ *See* Morris Decl. Ex. A.

²¹ *City of Chicago v. DoorDash, Inc.*, No. 1:21-CV-05162, 2024 WL 4119165, at *3 (N.D. Ill. Sept. 9, 2024).

²² *Id.* at *3-4 (the court “di[d] not agree with [Defendant] that its previous searches of and production of documents

To the extent BAL's reference to the seniority of these custodians seeks to suggest that an "apex witness" theory should somehow shield their documents and communications from discovery, such a theory is utterly inapplicable here. BBY is simply requesting that BAL *include* their documents and communications with those of the other custodians *whom BAL has itself identified* in its search for, review of, and production of relevant, nonprivileged documents in response to the BBY RFPs. The "apex witness" doctrine traditionally applies specifically to attempts to require live, in-person appearances of high-level executives or high-ranking government officials, such as for deposition testimony, and is intended to prevent litigants from potentially harassing or burdening corporate or government adversaries by seeking to depose their most senior officials about matters of which they have little or no personal knowledge or in which they have little or no personal involvement.²³ Accordingly, the doctrine maintains that before proceeding with *deposing* a high-level executive, a party must show that the individual (1) possesses unique information relevant to the issues being litigated, and (2) the information cannot be obtained by less intrusive methods, such as written discovery.²⁴ It simply has no applicability to *document requests*, especially from custodians whom *the producing party itself has identified* as having relevant knowledge: "[i]t is not oppressive, harassing, annoying, embarrassing, nor

from [other] custodians should preclude further discovery from additional custodians notwithstanding evidence suggesting those individuals may have relevant documents." See also *Thomas v. City of New York*, 336 F.R.D. 1, 4 (E.D.N.Y. 2020) ("Unlike the cases Defendants cite, where individuals are deemed unlikely to have relevant information, here Defendants are seeking to avoid discovery of materials belonging to named defendants; concede that many of the custodians have information, but assert that the ESI must be redundant or non-unique; and have failed to demonstrate exceptional costs in reviewing allegedly redundant ESI."); *Garcia Ramirez v. U.S. Immigration & Customs Enforcement*, 331 F.R.D. 194, 198 (D.D.C. 2019) ("Defendants have not articulated anything more than general statements that allowing discovery from the additional custodians would cause an undue burden. Defendants do not provide any evidence or specific factual allegations to support their assertion that discovery from the additional custodians would unduly add to the cost or time needed to process the necessary documents.").

²³ See, e.g., *In re C. R. Bard, Inc. Pelvic Repair Sys. Prod. Liab. Litig.*, No. MDL 2187, 2014 WL 12703776, at *3 (S.D.W. Va. June 30, 2014).

²⁴ *Id.*

unduly burdensome to require” a high-ranking executive with a “hands-on role” to produce his or her emails.²⁵

BAL has no plausible claim of harassment here and has articulated no discernible burden that would outweigh the relevance of the discovery sought from custodians whom it itself chose to identify. Accordingly, this Motion should be granted.

IV. CONCLUSION

For the reasons stated above, BBY respectfully requests that the Presiding Officer enter an order compelling BAL to search for and produce nonprivileged documents, communications, and information responsive to the BBY RFPs from Cinda Li and Richard Xu as well as the other custodians whom BAL has identified in its responses to the BBY Interrogatories.

[SIGNATURE PAGE FOLLOWS]

²⁵ *Dyson, Inc. v. Sharkninja Operating LLC*, No. 1:14-CV-0779, 2016 WL 1613489, at *2 (N.D. Ill. Apr. 22, 2016).

Dated: September 10, 2025

HUTH REYNOLDS LLP



Karl C. Huth

(212) 731-9333

huth@huthreynolds.com

Matthew J. Reynolds

(646) 872-9353

reynolds@huthreynolds.com

J. Zachery Morris

(332) 203-4571

zmorris@huthreynolds.com

Gregory A. Crapanzano II

(917) 575-3440

gcrapanzano@huthreynolds.com

Mohini P.B. Rarrick

(818) 235-9753

mpriya@huthreynolds.com

Heewan Noh

(202) 420-9628

hnoh@huthreynolds.com

41 Cannon Court

Huntington, NY 11743

*Counsel for Complainant 20230930-DK-
Butterfly-1, Inc.*

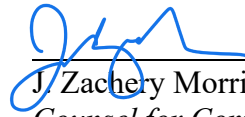
Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondent BAL Container Line Co., Limited by emailing a copy to their counsel of record listed below:

Bryce Cullinane, CASB No. 307079
bcullinane@tocounsel.com
David P. Collins
dcollins@tocounsel.com
535 Anton Boulevard, Ninth Floor
Costa Mesa, CA 92626-7109
Telephone: (714) 549-6200
Fax: (714) 549-6201

Counsel for Respondent BAL Container Line Co., Limited

Dated: September 10, 2025



J. Zachery Morris
*Counsel for Complainant 20230930-DK-
Butterfly-1, Inc.*